

Item Nos. 03 & 04

(Court No. 1)

BEFORE THE NATIONAL GREEN TRIBUNAL

(By Video Conferencing)

Original Application No. 985/2019

(With reports of Oversight Committee dated 26.07.2021, 12.11.2021, of CPCB dated 30.07.2021 and State PCB dated 30.07.2021)

In Re: Water Pollution by Tanneries at Jajmau, Kanpur, Uttar Pradesh

WITH

Original Application No. 986/2019

In Re: Water Pollution at Rania, Kanpur Dehat & Rakhi Mandi, Kanpur Nagar, Uttar Pradesh

Date of completion of hearing and reserving of order: 16.11.2021

Date of uploading of order on the website: 23.11.2021

**CORAM: HON'BLE MR. JUSTICE ADARSH KUMAR GOEL, CHAIRPERSON
HON'BLE MR. JUSTICE SUDHIR AGARWAL, JUDICIAL MEMBER
HON'BLE DR. NAGIN NANDA, EXPERT MEMBER**

ORDER

1. This order is in continuation of order dated 08.02.2021. The matter involves two issues. First issue (OA 986/2019) relates to **scientific disposal of Chromium dumps at Rania, Kanpur Dehat and Rakhi Mandi, Kanpur Nagar which have been in existence since 1976** and have *inter-alia* resulted in contamination of ground water adversely affecting the health and depriving the inhabitants of access to drinking water. Second issue (OA 985/2019) relates to **continuing water pollution by tanneries discharging untreated industrial effluents, containing**

toxic Chromium into the irrigation canal through inadequately functioning CETP at Jajmau, UP.

2. The matter has been considered by the Tribunal in the last more than two years and reviewed atleast thrice – on 15.11.2019, 16.7.2020 and 8.2.2021. It has been found that though chromium dump site is in existence since 1976, no meaningful remedial action has been taken by the State to tackle such hazardous waste which was affecting the environment adversely, particularly the ground water. On the second issue, it has been found that chromium contaminated effluent from tanneries is being discharged into river Ganga without proper treatment. On both counts the problem is still persisting in absence of sensitiveness on the part of the State authorities, which calls for action in mission mode, including fixing of responsibility of the concerned officers for such continuing failure. We may refer to the three orders passed earlier, dealing with the issue.

Order dated 15.11.2019

3. The status of compliance was reviewed on 15.11.2019 with reference to the report of the CPCB dated 30.10.2019 and earlier proceedings before this Tribunal. It was observed:

“11. It is undisputed that Chromium dumps containing toxic hexavalent Chromium (as mentioned in the report of the CPCB quoted above) has been in existence since 1976 and requisite steps have not been taken so far to dispose of the same as per mandate of law. Chromium is considered to be an environmentally hazardous element and classified as class-A human carcinogen.¹ Hexavalent Chromium Cr (VI) is toxic and the World Health Organization (WHO) has classified it as carcinogenic and can cause stomach ulcers and cancers and severe

¹ <http://www.isca.in/rjcs/Archives/v7/i7/7.%20ISCA-RJCS-2017-024.pdf>

damage to kidneys and liver.² The industries responsible for generating the said dumps were closed in the year 2005. The SPCB has assessed liability of environmental compensation of Rs. 280.01 crore only on 24.10.2019. There is no explanation why no such step was taken against the said industries earlier. We may note that this Tribunal has been issuing directions for shifting of the Chromium dumps but the State of UP has failed to do so. The direction of this Tribunal has already been quoted above from the order dated 22.08.2019 (para 24). Such directions were also issued earlier vide order dated 13.07.2017.

12. **From the above, it is clear that there is failure on the part of State of UP and its authorities in disposal of the Chromium dumps which is hazardous to the public health and the environment and the proposal now mentioned in the report of the Chief Secretary, UP is for in-situ remediation though earlier stand of the State of UP was to shift the Chromium waste to the Treatment Storage and Disposal Facility (TSDF) for hazardous waste as per Hazardous Waste Management Rules, 2016.** The fact remains that the problem has not been tackled for the last 43 years and it has resulted in contamination of ground water affecting the health and life of the inhabitants and fauna. Compensation has been assessed only in the year 2019 without it being clear whether there is a chance of actual recovery of the same. There is no explanation for earlier inaction by the State of UP and the UPPCB.
13. For this failure, under the Public Trust Doctrine, the State is liable to deposit the said assessed amount in an ESCROW account for restoration of environment and the public health in the area. Such deposit may be made within one-month from today. The amount may be spent after preparation of an action plan by the District Magistrates and the SPCB with the approval of the CPCB. The ESCROW account will be operated by the concerned District Magistrate in terms of action plan. The State will be at liberty to recover the amount from the erring industries and/or from the erring officers who failed to take necessary action.

For measures to be adopted to utilize the amount, it will require a credible study of the health issues in the area. This may be done by an Expert Committee comprising representatives from (1) S.N. Medical College, Kanpur, (2) PGI Lucknow, (3) RML Lucknow and (4) a nominee of Secretary, Health, Ministry of Health, Govt. of India. The nodal agency will be the Principal Secretary, Medical & Health, UP.

14. With regard to supply of potable water in the affected areas, such supply should take care of not only drinking purposes but

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https://www.who.int/water_sanitation_health/waterquality/guidelines/chemicals/chromium.pdf

also other purposes. It is well known that adverse effect on health is not only by drinking contaminated water but also on account of bathing or cooking and also on account of it being part of the food chain. It is necessary to put the concerned inhabitants in the area to notice of adverse consequences of use of contaminated water and placing the data of contents of water quality on website of the State. The affected area should also be delineated and put in public domain.

15. *PWS must be established as is said to have already been directed by the State expeditiously positively from 01.03.2020. Since in Rakhi Mandi pipe carrying potable water is already available, such supply may be made operational positively by 15.01.2020 i.e. within two months, which is the timeline proposed by the State itself in its affidavit.*
16. ***With regard to illegal permission granted by the Principal Secretary, Urban Development on 08.08.2019 for release of large quantity untreated sewage directly into river Ganga on the ground of cleaning trunk sewer, the explanation furnished cannot be accepted as no assessment of pollution load and its constituents was made. It was not considered that the sewage/effluents had highly toxic Chromium content. Its impact on recipient water of river Ganga and the downstream inhabitants who will use such water was not considered. The action taken cannot by any standards be considered to be a responsible action of a welfare State and shows total apathy for the environment and the health of the inhabitants and the rule of law.***
Moreover, it is only after the order of this Tribunal that a decision has been taken to close operation of 122 tanneries which were discharging untreated industrial effluents with hazardous contaminants in irrigation channel through CETP and thereafter directly in the River Ganga as CETP did not have the requisite capacity. This action has been taken only on 01.10.2019. Tannery industries in India are contributing high Chromium contamination to the environment. These industries of India alone are reported to contribute about 2000-3000 tonnes of Chromium contamination to the environment in which Chromium concentration ranges from 2000- 5000 mg/L in the aqueous effluent.³
17. *The stand of the State of UP shows that it is being understood in certain quarters that during monsoon any pollution load, including sewage or any other polluting effluents can be discharged in the water bodies/ rivers which is clearly against the mandate of Section 25 of the Water (Prevention and Control of Pollution) Act, 1974. The CPCB may need to issue an appropriate direction to ensure that such illegality does not take place anywhere in the country.*

³ Dhal B., Thatoi H.N., Das N. and Pandey B.D. (2013). Chemical and microbial remediation of hexavalent chromium from contaminated soil and mining/metallurgical solid waste: A review. Journal of Hazardous Materials, 250, 272-291

18. *The State of UP has to be held liable to pay compensation to the extent of Rs. 10 Crores for violation of law affecting the environment and public health for illegally permitting discharge of sewage and other effluent containing toxic Chromium directly into river Ganga. The quantum of compensation is being fixed having regard to the magnitude and nature of pollutant. **The report of the Chief Secretary in para 12 clearly accepts that the effluents of 122 operational tanneries now closed from 01.10.2019 was part of the discharge on account of stoppage of flow of effluents in CETP. Further in para 13 it is stated that UP Jal Nigam was allowed to discharge effluents into river Ganga pending cleaning of trunk sewer and non-functioning of STP. Annexure 9 to the affidavit which is a report of the Principal Secretary, Urban Development mentions that the trunk sewer of dia. of 2100x2300mm was required to be cleaned which had capacity to carry 100 MLD sewage to cluster of STP of 205 MLD capacity. Main sewer line was damaged by tanneries mixing industrial waste into domestic waste which increased load for treatment on STP. This led to mixing of Chromium in sewage water rendering sludge unusable and harmful for the agricultural fields. Liability of any authority undertaking hazardous activity having potential for injury to environment and public health is well known.⁴ Principles for determining quantum are well settled.⁵ Compensation has to be approximate to the cost of restoration and where exact data is not available, broad approximation having regard to attending circumstances is permissible. We have fixed the quantum in the light of these well-known principles.***

Even if adequate dilution was available, the pollution load that too loaded with toxic Chromium is undoubtedly bound to affect the water quality at one or other place and has potential to endanger the health and lives of people. The Principal Secretary, Urban Development had no legal jurisdiction to permit such illegality in violation of Section 25 of the Water (Prevention and Control of Pollution) Act, 1974.

The UPPCB, unfortunately, has not taken any action against such illegality and against polluting 122 tanneries for a long time for which the UPPCB has to be held liable to pay compensation of Rs. 1 Crore.

⁴ M.C. Mehta vs. Union of India 1987 (1) SCC 395

⁵ Sterlite Industries (India) Ltd. v. Union of India (2013) 4 SCC 575 : ¶ 47, T.N. Godavarman Thirumulpad v. UOI & Ors. (2006) 1 SCC 1 : ¶ 1, Indian Council for Enviro-Legal Action & Ors. v. Union of India & Ors. (1996) 3 SCC 212 : ¶ 67, Vellore Citizens Welfare Forum v. UOI, (1996) 5 SCC 647 : ¶ 11 to 13, M.C. Mehta v. Kamal Nath (1997) 1 SCC 388 : ¶ 10, Public Trust Doctrine, ¶ 24, M.C. Mehta v. UOI & Ors., W.P (C) No. 13029/1985 order dated 24.10.2017, MCD v. Uphaar Tragedy Victims Association (2011) 14 SCC 481 : ¶ 99, 100, Vadodra Municipal Corporation v. Purshottam v. Murjani & Ors. (2014) 16 SCC 14 : ¶ 17 and M. C. Mehta & Anr. v. Union of India (1987) 1 SCC 395 : ¶ 32.

The UP Jal Nigam is also liable for such neglect as it released untreated large quantity of sewage containing toxic Chromium in river Ganga. UP Jal Nigam is held liable for environment compensation of Rs. 1 Crore. The said amounts may be deposited with the CPCB within one month from today which may be overseen by the Chief Secretary, UP. The State of UP will be at liberty to recover the amount from the erring officers, apart from taking appropriate disciplinary or other departmental action in accordance with law.

19. We may now sum up our directions as follows:

- i. *The State of UP is held liable for failing to take any action for shifting of Chromium dumps at Rania and Rakhi Mandi which resulted in damage to the environment and the public health for the period from 1976 till date. The amount of compensation in this regard is held to be the amount assessed by the UPPCB to be recovered from the erring industries. Till such recovery, the State itself must pay the amount by way of transfer to an ESCROW account. The amount is to be utilized for restoration of the environment and the public health in the area in the manner mentioned earlier. The State of UP is at liberty to recover the amount from the erring industries or erring officers as already mentioned in para 13 above.*
- ii. *The State of UP must take further steps for disposal of the hazardous Chromium dumps as per directions of this Tribunal dated 22.08.2019 quoted above, failing which it will be liable to pay compensation as mentioned in the said order.*
- iii. *State of UP is held liable to pay environmental compensation of Rs. 10 crores for damage to the environment for permitting discharge of untreated sewage containing toxic Chromium into river Ganga directly vide its order dated 08.08.2019. The State of UP is at liberty to recover the amount from the erring officers apart from taking action against the persons responsible in the manner as already mentioned in para 18 above. The UPPCB is held liable to pay sum of Rs. 1 crore for ignoring illegal discharge of sewage and other effluent containing toxic Chromium directly into river Ganga and taking action after a long time in spite of earlier proceedings before this Tribunal. UP Jal Nigam is held liable to pay sum of Rs. 1 crore for releasing untreated large quantity sewage containing toxic Chromium in river Ganga. These amounts may be deposited with the CPCB within one month which may be overseen by the Chief Secretary, UP. UPPCB is at liberty to recover the amount from the erring industries.*
- iv. *The State of UP may take steps for supply of potable water to the inhabitants of the area and other steps as already mentioned in paras 13 to 15 above.*

- v. *The Expert Committee in terms of para 13 above may conduct the health survey within three months.*
 - vi. *CPCB may issue appropriate directions to ensure that no authority allows discharge of polluted sewage or polluted effluents directly into a water channel or stream in violation of law even in monsoon and also the standards for faecal coliform are duly maintained.*
20. *Compliance report of the above directions may be filed by the Chief Secretary, UP before the next date by e-mail at judicial-ngt@gov.in.*”

Order dated 16.7.2020

4. The matter was then considered on 16.07.2020 in the light of the reports of the Chief Secretary, UP dated 04.02.2020 and 11.06.2020 and report of CPCB dated 14.07.2020 as follows:-

“1to3.....xxx.....xxx.....xxx

4. *The report of the Chief Secretary, U.P is that an action plan has been prepared for restoration of the environment and certain steps have been taken for supply of water to the inhabitants. Further report dated 11.06.2020 is that the matter of remediation is at the tender stage. The report of the CPCB is of a general nature.*

5. ***The fact remains that the chromium dump containing toxic chemicals has not been shifted to the TSDF as required under the law for which failure of the State of U.P is continuing inspite of repeated directions showing lack of sensitiveness on the part of the concerned officers. Hazard to public health and environment continues. The process of remediation can only start only after shifting of the waste to operational TSDF.***

6. ***Having regard to the seriousness of the consequences for continued delay on one pretext or other, we direct the Chief Secretary, U.P to ensure prompt action on priority basis in a time bound manner which may be personally monitored by the Chief Secretary, U.P. The Committee constituted by this Tribunal headed by Justice S.V.S. Rathore, former Judge of the Allahabad High Court may also oversee the compliance of this direction and give its independent report by e-mail at judicial-ngt@gov.in preferably in the form of searchable PDF/ OCR Support PDF and not in the form of Image PDF. It is made clear that the Tribunal may have no other option except to take coercive measure for any further default by the State of U.P. Compliance status as on 31.10.2020 may be reported to this Tribunal before the next date by e-mail at judicial-ngt@gov.in preferably in the form of searchable PDF/ OCR Support PDF and not in the form of Image PDF.***”

Order dated 8.2.2021

5. The matter was last considered on 08.02.2021 in the light of report of the Oversight Committee dated 23.12.2020 and response of the State of U.P. dated 29.01.2021. The Tribunal found that in view of presence of mercury in the ground water there was need for cumulative impact study about the adverse effect on food safety and health. There was also need for multispecialty health facility for the affected inhabitants. Accordingly, the Tribunal directed remediation of hazardous waste sites, including the additional sites pointed out in the report of the Committee, which was required to be monitored at the level of Chief Secretary in coordination with the Oversight Committee. It was further directed that water supply may be ensured to all affected areas and impact of contamination on food chain may be controlled. In case the compensation was not recovered from the violators, the liability was held to be of the State. The directions are reproduced below:

“10. It has also been pointed out that there are reports of mercury being present in ground water which necessitates cumulative impact study of the area in terms of possible adverse effect on food safety and health. There is also need for multispecialty health facilities for the affected inhabitants. Even though as per earlier health studies there is no adverse effect seen, in reality people are suffering from Cancer, Diabetes and other diseases on account of pollution. The study, thus, needs to be more credible.

*11. Accordingly, in the light of above discussion, **the State of UP may take further remedial action. Remediation of hazardous waste sites departmentally may be explored, as tender process has not succeeded in the last several years and the dump sites have been in existence for the last 45 years which continue to be hazard to the lives of the inhabitants. The additional sites pointed out above may also be remediated. This needs to be tackled on emergency basis at the highest level in the State and monitored at the level of the Chief Secretary and also the Oversight Committee. CPCB may be consulted in the process for the remedial action which should be as per rules. The action plan may also ensure provision for water supply to all affected areas. Further, it must be ensured that contamination does not affect the food chain. The stand***

of the State of UP with regard to compensation is not as per earlier order dated 15.11.2019, para 13. If the amount is not recovered from the companies for want of effective legal steps for recovery within reasonable time, liability of the State for its negligence and inaction will continue.

12. The report discussed above, only relates to scientific disposal of chromium dumps at three locations. **Nothing is mentioned about the second issue of continued pollution by tanneries as well as discharge of untreated sewage into the irrigation canals and drains at and around Jajmau. Requisite remedial action may now be taken expeditiously and a report furnished alongwith the further action taken report on remediation of dump sites with compliance status as on 30.06.2021, by 15.07.2021 by e-mail at judicial-ngt@gov.in preferably in the form of searchable PDF/ OCR Support PDF and not in the form of Image PDF.**

Status reported in pursuance of order dated 8.2.2021 for consideration today

6. Accordingly, the report of CPCB filed on 30.07.2021 with respect to inspection of Common Effluent Treatment Plant (CETP), Jajmau and Common Chrome Recovery Plant (CCRP), Jajmau on 30.06.2021 and 17.06.2021 respectively is extracted below:-

“CETP, Jajmau

- i. CETP was found operational during inspection and operating at a utilized capacity of 39.21 MLD.
- ii. The CETP was operating without valid consent.
- iii. Flow meters installed at inlet of tannery channel, outlet of CETP and TEPH were found defunct.
- iv. Raw tannery effluent received at the tannery channel inlet was not meeting the standards for CETP prescribed by UPPCB for TSS (7701 mg/l against norms of 600 mg/l) and total Chromium (132 mg/l against 10 mg/l).
- v. Total Chromium-3.6 mg/l has been detected in domestic sewage inlet at CETP which indicated that illegal operations were being carried out in Jajmau, Kanpur and chrome bearing effluent and sludge was being discharged into the domestic drains by tannery units at Jajmau, Kanpur.
- vi. CETP inlet (tannery effluent + domestic sewage) was not meeting the standards prescribed by UPPCB for **TSS (1005 mg/l against norms of 600 mg/l) and total Chromium (16.8 mg/l against 4 mg/l).**

- vii. Treated effluent at outlet of CETP was found non-complying w.r.t. treated effluent discharge standards notified by MoEF&CC vide notification dated 01/01/2016 under E (P) Act, 1986 and the Rules framed under for **BOD (194 mg/l against norm of 30 mg/l), COD (431 mg/l against norm of 250 mg/l), TSS (146 mg/l against norm of 100 mg/l), chloride (1990 mg/l against norm of 1000 mg/l) and sulphide (182 mg/l against norm of 2.0 mg/l) and Total Chromium (8.4 mg/l against norm of 2.0 mg/l).**
- viii. After mixing of treated effluent of CETP with treated effluent of all three STPs (05 MLD, 130 MLD and 43 MLD), Fixed Dissolved Solids (FDS) were meeting CETP discharge standards notified by MoEF&CC vide notification dated 01/01/2016 under E (P) Act, 1986 (**FDS-1602 mg/l against 2100 mg/l**).

CCRP, Jajmau

- i. The CCRP is operated by Kanpur Nagar Nigam. The exhausted chrome tanned liquor collected from various tanneries is transported through tankers to the CCRP and regenerated chrome is to be sold to tanneries for reuse.
- ii. CCRP was operational during inspection.
- iii. It was informed that the chrome recovery system is operated intermittently depending on the receipt of chrome liquor from the tannery units and sufficient quantity of chrome liquor is ensured before running.
- iv. Only 117 tanneries are member of CCRP
- v. Analysis report indicated pH-3.74, Chromium (VI)- BDL and Total Chromium-1680 mg/l in raw effluent (CCRP inlet/Equalization tank) and pH-7.86, Chromium (VI)-BDL and Total Chromium-0.32 mg/l in treated effluent (CCRP outlet).
- vi. Only 1.5-7.5 MLD exhausted chrome liquor was collected from member tannery units during June 1-15, 2021 (as per logbook) indicates that member units are not giving liquor to CCRP for chrome recovery. The domestic sewage inlet channel was also receiving significant amount of Chromium therefore there is a possibility of discharge of chrome liquor/effluent into drains/river Ganga.
- vii. The treated effluent, after chrome recovery, was sent to Inlet of raw tannery effluent channel of 36 MLD CETP, Jajmau, Kanpur.
- viii. Flowmeter/v-notch has not been installed at inlet/outlet of the CCRP to measure the untreated/treated volume of effluent.
- ix. Poor record keeping was observed during inspection. Logbook for treatment of chrome liquor was not maintained.
- x. **CCRP was not having a valid consent from UPPCB under Water (Prevention and Control of Pollution) Act, 1974. Record of authorization for disposal of hazardous sludge was also not provided during inspection.**

Thus, in view of the non-compliance observed of CETP, Jajmau and its member tannery units, **directions under Section 18 (1) (b) of Water Act, 1974 dated 23rd July, 2021 were issued to Uttar Pradesh Pollution Control Board by CPCB to take appropriate action against the CETP, Jajmau and its member units and**

CCRP, Jajmau which may include closure or levying Environmental Compensation as deemed fit following appropriate procedure. The detailed directions are placed as Annexure IV.”

7. In the report dated 26.07.2021 filed by the Oversight Committee, compliance status and recommendations are mentioned as follows:-

“V. SUMMARY OF THE COMPLIANCE STATUS

S. No.	Directions issued by Hon’ble the NGT	Concerned Department	Compliance status
1.	Status of lifting and remediation of Chromium dump at Rania, Kanpur Dehat by the TSDF operators	UPSIDA	Not complied The lifting of Chromium dump has not started yet. In February 2021 the IIT-Kanpur has been appointed the PMC, who is in the process of finalising the Technology of remediation.
2.	Status of ETPs/CETPs installation to prevent untreated discharge of industrialeffluents in river Ganga and its tributary.	UP Jal Nigam	Partially complied The work has started, and the project is targeted to be completed by 02.02.2022.
3.	Status of recovery of EC.: UP Jal Nigam is held liable to pay a sum of Rs. 1 crore for releasing untreated large quantity sewage containing toxic Chromium in river Ganga.	UP Jal Nigam	Not complied The UP Jal Nigam has filed an Appeal in the Hon’ble Supreme Court in this regard.
4.	Status of recovery of EC: The UPPCB is held liable to pay sum of Rs. 1 crore for ignoring illegal discharge of sewage and other effluent containing toxic Chromium directly into river Ganga and taking action after a long time inspite of earlier proceedings before this Tribunal. The State of UP has to be pay compensation to the extent of Rs. 10 Crores for violation of law affecting the environment and public health for illegally permitting discharge of sewage and other effluent containing toxic Chromium directly into river Ganga.	UPPCB	Not complied No EC has been paid by the UPPCB.

7.	Status of recovery of EC on erring industries.	UPPCB	Partially complied In compliance of the order dated 04.01.2021 passed by the Hon'ble Tribunal on the appeals of the industries and, the UPPCB has given fresh opportunity to the appellants. The next date of hearing is 27.07.2021.
8.	Issuance of appropriate directions to ensure that no authority allows discharge of polluted sewage or polluted effluents directly into a water channel or stream in violation of law even in monsoon and also the standards for coliform are duly maintained	CPCB	Complied The CPCB has issued instructions to the Chairman, SPCBs of five Ganga States including U.P. to issue appropriate directions to the concerned authorities including urban local bodies in their States for compliance of the following direction: “No authority shall allow the discharge of polluted sewage or polluted effluents directly into a water channel or stream in violation of the law even during monsoon season and they shall ensure that the standards for faecal coliform are duly maintained.” In pursuance of the directions of the CPCB, the UPPCB has issued directions under section 33A of the Water (Prevention and Control of Pollution) Act, 1974 to the UP Jal Nigam, Meerut Development Authority, Agra Development Authority, Ghaziabad Development Authority, Greater Noida Development Authority, New Okhla Industrial Development Authority, UP Avas Vikas Parishad (Lucknow), Nagar Palika Parishad (Muzaffar Nagar), Nagar Palika Parishad (Mainpuri), Nagar Palika Parishad (Mathura), DLW (Varanasi) and Narora Atomic Power Station (Bulandshahr). The copy of the orders is annexed as Annexure V.

IV. RECOMMENDATIONS

In view of the above, we recommend as follows:

1. **With regard to the safe disposal of chromium dump at Rania, Kanpur no significant progress has been made by the Department/Agencies concerned in spite of there being a proper monitoring mechanism at all levels to push the progress. As per the preliminary report of the IIT-Kanpur there is a huge difference in the volume of the chromium waste at the site in comparison to the DPR of the CPCB. The Chief Secretary may be directed to get the correct quantity of the chromium dump ascertained through joint inspection by the IIT-Kanpur and the CPCB, to take all necessary measures to complete the**

remediation work in a time bound manner in the shortest possible time and to submit a quarterly progress report to the oversight committee.

2. **The Chief Secretary Government of U.P. be directed to personally supervise the project and ensure that all the formalities are completed at the earliest so that the actual work of scientific disposal of chromium dump is started without any further delay and completed in the shortest possible time.**
3. **In regard to the EC imposed on the UP Jal Nigam and the UPPCB for failing in their responsibilities towards keeping the river Ganga clean by not discharging untreated sewage into it, so far, no amount has been deposited. They may be directed to deposit the said amount without any further delay. However, the said amount may be subjected to the final outcome of the Civil Appeal filed by the UP Jal Nigam in the Hon'ble Apex Court.**
4. *EC of Rs. 280.01 Cr has been imposed on the 6 erring industries which has not been recovered so far. The UPPCB may be directed to invoke Recovery Certificates (RCs) and follow up its recovery vigorously with the respective DM(s). The State Government has in the meanwhile sanctioned Rs 23.44 Crores from its budgetary resources. It may also be directed to take stringent measures for the recovery of the EC and use this amount for the remediation of the contaminated waste as well as mitigating the health hazards suffered by the people of that area.*
5. **In order to prevent pollution from industrial effluents, a 20 MLD CETP is under construction in Jajmau but the progress is far from satisfactory. The UP Jal Nigam and the State Government may be directed to expedite the construction of the CETP so that it gets completed by February 2022, the targeted completion date.**
6. *As several alternatives to chrome-based tanning is available, the Central and the State Governments may be directed to encourage the Industry to adopt the techniques of chrome-free tanning in partnership with the Council of Industrial and Scientific Research (CSIR) and other reputed research institutes of the country. Meanwhile, the tannery clusters/units may be directed to install chromium recovery plants based on Tamil Nadu model and implement the tested recovery and reuse techniques. Also, norms should be very stringent for discharge of treated sewage into the drains/rivers.*
7. *There is a need for 24x7 monitoring of effluent treatment in such industrial clusters. The CETPs of such clusters need to be connected with the Central Control Room at Lucknow through the OCEMS for round the clock monitoring of environment parameters.”*

8. The response of the State PCB filed on 30.07.2021 is that UPSIDA has invited tender and appointed IIT Kanpur as consultant. It was found that actual volume of chromium at the site was much higher than mentioned earlier. Correct quantity is to be ascertained and then budgetary approval taken from the Government. Compensation has been assessed against six defaulting industries who have challenged their liability and the matter is pending consideration. Government has deposited a sum of Rs. 23.44 crores but the remaining amount has yet to be deposited. Piped water supply has been provided. Preliminary assessment has been made by the Expert Committee on the subject of health survey. Further survey is being conducted. Report of ground water analysis at 13 locations has been submitted in April 2021. The tanneries are now treating the effluents through the CETP. Action has been taken against the non-compliant units and compensation has been assessed, including the CETP operator. Functioning of STPs in Jajmau and Kanpur is being monitored. The operative part of the report is reproduced below:

*“3. That the Chief Secretary, Government of U.P. has given directions to the Additional Chief Secretary, Urban Development Department, Additional Chief Secretary, Infrastructure and Industrial Development Department, Additional Chief Secretary Medical, Health and Family Welfare Department vide letter dated 25.02.2021 to ensure the compliance of directions passed by Hon'ble NGT vide order dated 08.02.2021. Copies of the letter dated 25.02.2021 are enclosed herewith and marked as **Annexure No. 1, 2 & 3.***

*4. Further, the Chief Secretary, Government of U.P. has also reviewed the status of compliance with officials of concerned Departments through review meetings dated 02.12.2020, 21.12.2020 and 28.01.2021. The Chief Secretary, Government of U.P. has also been regularly reviewing the status of compliance of orders of Hon'ble NGT every third Monday of the month. During this review this case is also reviewed from time to time. Copies of the minutes of meetings dated 02.12.2020, 21.12.2020 & 28.01.2021 are enclosed herewith and marked as **Annexure No. 4, 5 & 6.***

5. That Uttar Pradesh State Industrial Development Authority (UPSIDA) has invited e-tenders three times for disposal of chromium waste dumped near Village Khanchandpur, Rania, but only one bid was received and the cost mentioned by bidder was more than the estimated cost in the DPR prepared by CPCB. Therefore, the bids were not approved.

6. That UPSIDA has informed that Indian Institute of Technology, Kanpur (IIT, Kanpur) has given acceptance to provide consultancy regarding tender conditions and cost estimations.

7. That Oversight Committee constituted by Hon'ble NGT has reviewed the status of compliance of the directions regarding lifting and remediation of Chromium waste dumped at Khanchandpur, Rania, Kanpur Dehat and Environmental Compensation imposed against the erring industries on 15.07.2021 was discussed and following progress has been observed:

- a. UPSIDA informed that IIT Kanpur has been appointed as the Project Management Consultant (PMC) for this purpose on 02.02.2021. As per the preliminary report it will take 12 months for the remediation of chromium waste from the date the work is started but before that some formalities have to be completed. This entire process will consist of digging the chromium legacy waste from dumping site, creation of sanitary landfill in the nearby area, treatment and dumping of waste in landfill site and lastly plantation of saplings on the landfill site. However, the work will start only after the technology, volume and cost are finalized and the work is awarded through a competitive bidding process.
- b. UPSIDA has also informed that the PMC has suggested that land availability in the vicinity of the dump for creation of landfill sites is mandatory and precursor to the process. Accordingly, Grain Samaj land has been identified and proposal has been sent to the DM Kanpur Dehat for resumption of land and handing it over free of cost for this project. Further, as per the report of the IIT-Kanpur, **the actual volume of Chromium waste lying at the site is much higher (1,22,800 m³) in comparison to the volume reported in the earlier DPR of the CPCB (37,712 m³). Moreover, as per CPCB, the area of dump at the site is 37,000 m² while as per IIT Kanpur the area is 50,312 m² . A decision has been taken to ascertain the correct quantity of Chromium Dump after discussion between the CPCB and IIT-Kanpur as it has a direct bearing on the final cost of the project. Thereafter, the prior budgetary approval will be obtained from the government. The Committee expressed its deep concern about the delay in executing the order of the Hon'ble NGT and directed UPSIDA to submit a timeline for all the activities right from the on-going preparation of the project to its completion for facilitating a proper and productive monitoring by the Committee. The Oversight Committee**

also directed the UPSIDA to implement this project in Mission Mode as it has a direct adverse impact on the health of the local inhabitants and the environment.

- c. *That it is submitted that UP Pollution Control Board had imposed Environmental Compensation of Rs. 280.01 Crore against 06 defaulting industries on 19-11-2019 and Recovery Certificates (RCs) against the above 06 defaulting industries were issued as submitted in the previous compliance report. It is further submitted that the industries responsible for illegal dumping of chromium waste had filed Original Application Nos. 18, 19, 20, 21 and 22 of 2020 before Hon'ble Tribunal for getting relief against imposition of environmental compensation by Uttar Pradesh Pollution Control Board. That Hon'ble Tribunal has disposed off all the connected cases vide its order dated 28.01.2020 with the following direction:-*

"Without expressing any opinion on merits, we direct that the impugned orders may be treated as a proposal with reference to which the applicants may furnish their response to the UP State PCB within two weeks. The UP State PCB may consider the objections of the applicants and pass an appropriate order within four weeks thereafter dealing with the matter on merits, in accordance with law".

In compliance of Hon'ble NGT order dated 04.01.2021, UP Pollution Control Board has again given due opportunity to the appellants and the hearing was done on 16.03.2021. Industries have to submit some more information in this regard. After following the due process of law appropriate orders will be passed by the UPPCB. The next date of hearing is 20.08.2021.

That the ESCROW account has been opened by District Magistrate Kanpur Dehat, for deposition of funds to be utilized for removing the dumped hazardous waste and restoration of the environment and the public health. State Government has transferred amount of Rs 23.44 Crore to the ESCROW account on 27.03.2020. The rest amount for remediation of chromium dump site Khanchandpur, Rania, Kanpur Dehat, could not be deposited in the ESCROW account due to non-recovery of Environmental Compensation imposed against the 06 industries, as they have obtained stay from the Hon'ble NGT on 28.01.2020 and 04.01.2021.

8. *That Piped Water Supply (PWS) to the residents of affected area of Rakhi Mandi, Kanpur Nagar was commissioned on 15.01.2020. Safe Water Supply through PWS is being provided since then continuously to inhabitants of the affected area through 2510 meter pipe line and 225 household connections.*

9. That supply of safe water to the residents of village Khanchandpur, Rania through Piped Water Supply System has been started since 15th July, 2020.

10. That in compliance to the directions regarding health survey in affected areas, the Expert Committee constituted by Hon'ble Tribunal has submitted its preliminary assessment report after visiting the sites along with the methodology for Comprehensive Baseline Assessment and Mitigation Measures on 28-12-2019. Final report of Committee regarding Comprehensive Baseline Assessment and Mitigation Measures is awaited.

The Chief Secretary, Government of U.P. has directed vide letter dated 25.02.2021 to Additional Chief Secretary, Medical Health and Family Welfare Department to submit the Credible Health Study Report incorporating edible food safety and health in affected Khanchandpur Rania, Kanpur Dehat and Rakhi Mandi, Kanpur area.

Director, Medical and Health Services, UP has submitted status report regarding Health Camps conducted in these areas and their outcome vide its letter dated 28.07.2021 stating that in village Khanchandpur health camps were organized from August 2020 to July 2021 and no signs of the adverse health effects of chromium were found on the 818 patients examined during health camps. Director, Medical & Health Services has also informed that in Rakhi Mandi and Jajmau Kanpur health camps were organized from March 2020 to April 2021 and again in July 2021 and no signs of the adverse health effects of chromium were found on the 1124 patients examined during health camps. The copy of the letter dated 25.02.2021 and letter dated 28.07.2021 are enclosed herewith and marked as **Annexure No. -3, 7.**

11. During the hearing, it is pointed out by learned Amicus that from the website of the UP State PCB it is clear that apart from the above hazardous dump sites, there are other dumps as follows:-

1. Nauraiya Khera-Kanpur
2. Juhi Bahuraiya-Kanpur
3. Panki Industrial Area — Kanpur
4. India Pesticides Ltd, Deva Road- Lucknow

That it is submitted that at present no hazardous waste is dumped at all the above four sites. Piped water supply system is operational in Panki, Kanpur through PWS by U.P. Jal Nigam. Ground water is not used for irrigation in these area, so the possibility of affecting food chain is negligible.

The Chief Secretary, Govt of UP has directed vide its letter dated 25-02-2021 to Additional Chief Secretary, Infrastructure and Industrial Development Department for taking necessary steps for remediation of the first three sites in consultation with Central Pollution Control Board.

Copy of letter dated 25.02.2021 is enclosed herewith and marked as Annexure no. 2.

That it is submitted that at the Fourth Site M/s India Pesticides Ltd. Deva Road, Lucknow, the industry has submitted the short study report comprising ground water analysis at 13 locations done by Indian Institute of Toxicology and Research, Lucknow in April 2021, which shows that pesticides concentration and ground water is within permissible limit at all the 13 locations. As the ground water is not having pesticides concentration above the standards, so the possibility of affecting food chain is negligible.

Relevant part of the study report is enclosed herewith and marked as Annexure No. 8.

12. That it is further submitted that the CETP at Jajmau, Kanpur is having capacity of 36 MLD to treat (combined effluent in ratio of 1:3) 9 MLD Tannery effluent & 27 MLD domestic sewage effluent. All the tannery units discharge primary treated effluent through conveyance channel, which is further pumped through 4 pumping stations into 36 MLD CETP designed to treat mixed effluent consisting of 9 MLD tannery effluent and 27 MLD domestic sewer.

That the maintenance of conveyance channel, pumping stations and operation of CETP is done by Ganga Pollution Control Unit, U.P. Jal Nigam, Kanpur. The treated CETP effluent gets further diluted with treated effluent of 130 MLD, 43 MLD and 5 MLD STP at the premises of CETP Jajmau before finally discharged into irrigation channel for irrigation. The STPs are also operated and maintained by operator M/s Kanpur River Management Pvt Ltd, Kanpur selected by UP Jal Nigam.

13. That it is further submitted that there is no separate sewerage network in Jajmau area, where all the tannery units are situated, so untreated domestic sewage generated from Jajmau area also gets mixed with industrial effluent goes through conveyance channel into CETP.

Also, in case the pumping stations are not operated continuously and effectively, then incidences of overflow getting discharged through nearby drains directly into river Ganga do occur. U.P. Pollution Control Board has taken action against the tannery units as well as operator of CETP whenever such incidences have been noticed. The details of action taken against the defaulters are summarized in subsequent paras.

14. That, it is submitted that keeping the above aspect into consideration, U.P. Pollution Control Board has taken following measures to reduce the chances of overflow from pumping stations as well as excess effluent going into CETP.

a. U.P. Pollution Control Board issued guidelines vide letter dated 08.06.2019 to assess the infrastructure of tannery units according to their permitted capacity in order to restrict tannery units to operate as per their permitted capacity.

b. The process of tanning operation in tannery unit is such that there is no continuous flow generation from the process and it is more in the nature of batch process, so tannery effluent generated from tannery units gets discharged after accumulation of effluent for 2 to 3 days. This in turn results into excess flow generated from the tannery units at a particular point of time than the permissible discharge calculated on Kl/day basis, whenever it is discharged after completion of batch process. U.P. Pollution Control Board restricted the overall capacity of each tannery unit first upto 80% of its consented capacity in order to reduce the chances of excess flow going to pumping stations and subsequently to CETP inlet. But this step was also not found to be adequate as excess flow was still noticed at each pumping stations and CETP inlet due to inseparable domestic effluent up to 10.02 MLD, as well as batch process of tannery units. Therefore, U.P. Pollution Control Board restricted the overall processing capacity of each tannery unit further to 50% of its consented capacity in order to reduce the chances of excess flow going to pumping stations and subsequently to CETP inlet.

c. U.P. Pollution Control Board implemented roster of operation of tannery units attached to different pumping stations. As per this roster tannery units attached to pumping station 1 and 3 are operated for first 15 days of the month and tannery units attached to pumping station 2 and 4 are operated for next 15/16 days of the month.

d. Each tannery unit has installed flow meter at the outlet of PETP with connectivity to CPCB and UPPCB server.

e. U.P. Pollution Control Board is regularly monitoring the effluent quality of different conveyance channels before reaching pumping stations and it has been directed that if any default is noticed then coercive action will be taken against all the tannery units existing in upstream of that location.

f. Surprise checks are done by UPPCB and Inter Departmental Teams as well as Third Party Institutions like IIT, HBTU, PCCRI, NEERI from time to time and actions are taken against the defaulter units.

15. That U.P. Pollution Control Board has taken action from time to time, whenever tannery effluent overflow to Ganga river was found at Pumping Stations operated by Ganga Pollution Control Unit, U.P. Jal Nigam, Kanpur. The details of action taken from time to time is summarized as below-

S. No.	Action Taken	Date	Reason of Action Taken
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1.	<i>Direction for Closure and disconnection of electricity of 251 tannery units.</i>	18.11.2018	<i>Non availability of sewage at inlet of CETP for dilution due to maintenance of trunk sewer line.</i>
2.	<i>Direction for Closure and disconnection of electricity of 19 tannery units</i>	26.12.2018	<i>Overflow from pumping station no.-4 (Budhiyaghat)</i>
3.	<i>Direction for Closure And disconnection of electricity of 09 tannery units</i>	31.12.2018	<i>Over capacity production.</i>
4.	<i>Direction for Closure and disconnection of electricity of 91 tannery units</i>	06.01.2019	<i>Overflow from pumping station no.-3 (Wajidpur)</i>
5.	<i>Direction for Closure and disconnection of electricity of 114 tannery units</i>	09.01.2019	<i>Overflow from pumping station no.-2 (Sheetla bazar)</i>
6.	<i>Direction for Closure And disconnection of electricity of 122 tannery units</i>	01.10.2019	<i>Non availability of sewage at inlet of CETP for dilution due to maintenance of trunk sewer line.</i>
7.	<i>Direction for Closure and disconnection of electricity of 02 tannery units</i>	17.08.2020	<i>Over capacity production.</i>
8.	<i>Direction for Closure And disconnection of electricity of 05 tannery units</i>	11.12.2020	<i>Over capacity production.</i>
9.	<i>Direction for Closure And disconnection of electricity of 09 tannery units.</i>	01.01.2021	<i>To prevent overflow from pumping station no.-4 (Budhiyaghat)</i>
10.	<i>Direction for Closure And disconnection of electricity of 95 tannery units</i>	18.03.2021	<i>Over flow from Pumping Station 3 (Wajidpur) and operation of tannery units during closure roster period.</i>
11.	<i>Environmental Compensation of Rs 2.37 Crore imposed against 211 defaulter tannery units in compliance of Hon'ble NGT order out of which Environmental Compensation of Rs. 70.62 Lac has been recovered from 169 tannery units. Recovery Certificate for recovery of Environmental Compensation of Rs 1.13 Crore has been issued by District Administration against 01 unit.</i>		

UPPCB issued closure order against 122 tannery units which were operating at that time when sufficient dilution water was not

available at CETP due to non functioning of 130 MLD and 05 MLD STP, Jajmau by U.P. Jal Nigam. It is also to be noted that tannery effluent containing toxic Chromium after treatment through CETP goes to irrigation channel for ultimate use in agriculture.

16. That, it is further submitted that Board has imposed Environmental Compensation against the operator of CETP and STP i.e. Ganga Pollution Control Unit, U.P. Jal Nigam, Kanpur/ M/s Kanpur River Management Pvt Ltd, Kanpur from time to time on the basis of different defaults. The details of action taken is summarized in the table form as below :-

S. No.	Action Taken	Date	Reason of Action Taken
1.	Imposition of Environmental Compensation of Rs 2.5 Lac	25.04.2019	Discharge of untreated sewage to Ganga river due to damage in sewer line and not pumping sewer to STP of 130 MLD, 43 MLD and 5 MLD at Jajmau, Kanpur.
2.	Imposition of Environmental Compensation of Rs 1.5 Lac	04.06.2019	Discharge of untreated sewage from 130 MLD and 43 MLD STP Jajmau, Kanpur.
3.	Imposition of Environmental Compensation of Rs 1.5 Lac	01.01.2021	Due to not achieving the standards at the outlet of 36 MLD CETP, Jajmau, Kanpur
4.	Imposition of Environmental Compensation of Rs 11.25 Lac	04.06.2021	Discharge of untreated sewage from 130 MLD.

17. That U.P. Pollution Control Board is regularly monitoring the status of tapping of drains and functioning of STPs in Jajmau and Kanpur. It is further submitted that U.P. Pollution Control Board has prosecuted 04 erring officials (03 Assistant Engineer and 01 Junior Engineer) of U.P. Jal Nigam under section-43/44 of Water (Prevention and Control of Pollution) Act 1974 in Hon'ble Special Court (Air and Water Pollution Control) Lucknow on 18.03.2021 after getting due permission under section 197 of Cr.PC from the State Government for not ensuring complete tapping of 26 drains of Kanpur Nagar through STPs as well as not discharging treated sewage from 05 MLD STP and 130 MLD STP at Jajmau, Kanpur within prescribed standards.

18. That it is also relevant to submit here that in order to improve the treatment capacity of existing tannery units of Jajmau, Kanpur, Central Government has taken effective initiation and for Jajmau Tannery cluster, National Mission for Clean Ganga, New Delhi has approved 20 MLD CETP (dilution based) as per NGT direction worth Rs. 554 Crore. The proposal was consented by the tannery association and the Government of Uttar Pradesh. The Special Purpose Vehicle (SPV) of member tannery units has

committed to contribute Rs. 25 crore and has proposed to bear the estimated cost of Rs. 137 Crore for modified Primary Effluent Treatment Plant (PETP). Rest 392 Crore will be borne by National Mission for Clean Ganga (NMCG).

That the SPV has allotted the work of construction of CETP to M/s VA Tech Wa Bag Ltd. after finalizing the tender and estimated time of completion is March 2022. The new CETP is being constructed in the same premises of existing CETP and the treated effluent is proposed to be used for irrigation after dilution with treated STP effluent. After the construction of new 20 MLD CETP, all the existing tannery units in Jajmau cluster will be able to start production at full capacity.”

9. Separate report of the Oversight Committee dated 12.11.2021 in continuation of earlier report dated 26.07.2021 mentions the progress and recommendations as follows:-

“

1. “DM, Kanpur Dehat informed that they had received the first letter from UPSIDA on 20/10/2021 requesting for the resumption of 15 acres of land for the creation of landfill site whereas in the last review meeting dated 15/07/2021, UPSIDA had informed this Committee that the proposal has been sent to the DM Kanpur Dehat for resumption of land and handling it over free of cost for this project. The Committee directed the DM Kanpur Dehat to take decision in this matter within 3 weeks and the Secretary, Department of Infrastructure and Industrial Development to look into if a misrepresentation was made to this Committee in the last meeting and take appropriate actions against the person found responsible for this.
2. In the last review meeting, it was informed that **as per the report of the IIT-Kanpur, the actual volume of Chromium waste lying at the site is much higher (1,22,800 m³) in comparison to the volume reported in the earlier DPR of the CPCB (37,712 m³). The Committee directed the CPCB and the IIT Kanpur to carry out a joint inspection to ascertain the correct quantity of Chromium Dump as it has a direct bearing on the final cost of the project. But the report submitted to the UP Government is prepared by the IIT Kanpur with input from the CPCB. The Secretary, Department of Infrastructure and Industrial Development expressed difficulty in accepting this report and granting necessary approvals although a date for this meeting has been fixed. She also informed that the Department has already released Rs. 23 Cr in the ESCROW account of the DM, Kanpur Dehat. But this fund is not being utilized because of the above mentioned dispute in the estimation of volume. The Oversight**

Committee directed the CPCB and IIT Kanpur to complete the joint inspection report by 20/11/2021. The Committee also directed the Secretary, Infrastructure & Industrial Development Department, UP to ensure that the competent authority takes decision on this by 27/11/2021.

3. Earlier the UPPCB had imposed the environmental compensation of Rs. 280.01 Cr on 6 defaulting industries. Now, 05 other defaulting units engaged in production of basic chrome sulphate, which were responsible for the illegal dumping of chrome waste on said site, has been identified by the UPPCB and show cause notices have been issued against them for the imposition of environmental compensation. After getting response from these 05 units and following due process of law, appropriate orders will be passed by the UPPCB. It was clarified by the UPPCB in the meeting that total EC will remain the same only their distribution amongst the parties will change.

The detailed minutes of the meeting is annexed as **Annexure I.**

IV. RECOMMENDATIONS BY THE OVERSIGHT COMMITTEE

In view of the above, we recommend as follows:

1. **CPCB and IIT Kanpur may be directed to conduct a joint inspection and determine the volume of the chromium waste scientifically for its remediation so that once this process is complete, the site is completely free from this hazardous waste.**
2. **The Chief Secretary, UP may be directed to personally supervise the project on monthly basis and ensure that all the formalities are completed at the earliest so that the actual work of scientific disposal of chromium dump is started without any further delay and completed in the shortest possible time. The Chief Secretary, UP may also be directed to submit a monthly progress report in this regard to the Oversight Committee for submission to the Hon'ble NGT.**
3. **There are mechanisms available to recover EC from the defaulter industries which are in operation. For closed down units when efforts are made to recover EC as arrear of land revenue, several legal and other complications arises and EC remains unrecovered. So, there is an urgent need to develop a mechanism to recover the EC from the closed units. Attention of the Central Government may be drawn towards it so that by way of amendment in law effective mechanism is introduced to recover EC as arrear of land revenue or by any other effective mode to facilitate the recovery from the closed units also."**

10. From the report of the CPCB and the Oversight Committee dated 12.11.2021, it is seen that issue of remediation of chromium dump site is still hanging fire. It is now reported that actual volume of chromium waste is much higher than reported earlier. The affected area now found is 1,22,800 m³ as against the area earlier reported 37,712 m³. Further, CETP and CCRP at Jajmau are non-compliant, calling for remedial action.

11. As already observed, there does not seem to be adequate seriousness on the part of the authorities in handling the grim situation which has been in existence since 1976 and is adversely affecting the health of the citizens. Further, discharge of toxic chromium is taking place in Ganga due to non-compliant CETP and CCRP for which prompt action is required, to be monitored at the level of Chief Secretary. First imperative is to collect complete information on number of wells contaminated as well as the locations where chromium dumps are existing in the form of a complete inventory. Next step is firm action plan. At the same time remediation work pending for such a long time is prompt need to protect health of citizens. Not realizing the seriousness, the issue appears to be stuck in identifying the executing agency. Having regard to seriousness of the matter, MoEF & CC needs to be involved for guidance and handholding.

12. On the issue of not having complete treatment of tanneries effluent, it is seen that the CCRP is being operated with limited Members with discharge by tanneries into existing sewers and drains. This shows poor consent monitoring mechanism on the part of State PCB. Tannery effluent and sewage effluent are reported to be mixed and utilised for irrigation (about 214 mld) having deleterious effect on soil, ground water and ultimately on crops grown. During the period when effluent is not utilized, the same may be going to Ganga. This situation needs to be checked and

remedied. As noted in the order dated 15.11.2021, the State PCB has assessed compensation on account of continuing damage by the chromium dump at Rs. 280.01 crores as on 24.10.2019. Further, for discharge of untreated sewage of toxic chromium into Ganga, the State of UP has been held liable to pay compensation of Rs. 10 crores. UP Jal Nigam was also liable to pay compensation of Rs. 01 crore for discharge of untreated sewage. Compensation was liable to be paid by the State by way of transfer to an ESCROW account for restoration of the environment with liberty to recover the same from erring industries. As per report of the Oversight Committee, lifting of dump has not yet started while work of preventing discharge of effluent has commenced. State Government has so far deposited a sum of Rs. 23.44 crores. The State is liable to deposit the remaining amount and pendency of proceedings against erring industries cannot be a ground not to comply with the said order.

13. Accordingly, we find it necessary to constitute a five-member expert Committee under the Chairmanship of Chief Secretary, U.P. with nominees of MoEF&CC, CPCB, NMCG, UP PCB and District Magistrates of Kanpur Dehat and Kanpur Nagar. CPCB and the State PCB will be nodal agencies jointly. The Committee may meet within two weeks and prepare road map for remedial action. The Committee is free to coopt any other expert or institution. Cost of remediation will be first born by the State of UP with liberty to the State to recover the same from any other source of funding or from such erring industries/individuals as may be found responsible, as per law. The plan should result in remediation of dump sites as well as preventing further discharge of chromium or other effluents at Jajmau or other such places in Ganga. An action taken report of compliance status as on 31.03.2022 be filed before the next date.

List for further consideration on 26.04.2022 alongwith Appeal No. 14 of 2020, *Chandni Chemicals Pvt. Ltd. Vs. Uttar Pradesh Pollution Control Board and connected matters.*

A copy of this order be forwarded to the MoEF&CC, CPCB, NMCG, Chief Secretary, UP, the State PCB and District Magistrates of Kanpur Dehat and Kanpur Nagar by e-mail for compliance.

A copy of this order be also forwarded to Justice SVS Rathore, heading the oversight Committee constituted by this Tribunal for information.

Adarsh Kumar Goel, CP

Sudhir Agarwal, JM

Dr. Nagin Nanda, EM

November 23, 2021
Original Application No. 985 – 986 of 2019
DV